Calendar Lines # 5
Case Name U.S. Bank National Association vs Sarkis Sayadi
Case No. 23CV414085

Motion to Enter Judgment Pursuant to Code of Civil Procedure section 664.6

I. BACKGROUND

On August 26, 2025, Plaintiff US Bank National Association d/b/a Elan Financial Service ("Bank") filed a motion to enter judgment pursuant to Code of Civil Procedure section 664.6 that was entered on July 26, 2024. The motion was accompanied by a proof of service indicating mail service on August 26, 2025.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court carefully reviewed the following: Plaintiff's notice motion (totaling 3 pages); memorandum of points and authorities in support of the motion to enter judgment (totaling 3 pages); Declaration of Zhen Ren in support of the motion and attached Exhibit A (totaling 10 pages); Memorandum of Costs (totaling 2 pages); and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 664.6: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc., § 664.6).

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (*Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.* (2002) 103 Cal.App.4th 30, 37). Accordingly, "parties" under section 664.6 means the litigants themselves, not their attorneys. (*Levy v. Superior Court* (1995) 10 Cal.4th 578, 586 (holding "we conclude that the term 'parties' as used in section 664.6 means the litigants themselves, and does not include their attorneys of record.").) Additionally, the settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 Cal.App.4th 974, 985).

"Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." (*Weddington Prods., Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809). When ruling on a section 664.6 motion, the trial court acts as a trier of fact to determine whether a settlement has occurred, which is also an implicit authorization for the trial court to interpret the terms and conditions to settlement. (*Id.*) The court may not "create the material terms of a settlement," and must instead decide on what terms the parties agreed upon. (*Id.*; *Terry v. Conlan* (2005) 131 Cal.App.4th 1445, 1460; *Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1360; *Fiore v. Alvord* (1985) 182 Cal.App.3d 561, 565-566). "In acting upon a section 664.6 motion, the trial court must determine whether the parties entered into a valid and binding settlement of all or part of the case. In making this determination, trial judges, in the sound exercise of their discretion, may receive oral testimony or may determine the motion upon declarations alone." (*Corkland v. Boscoe* (1984) 156 Cal.App.3d 989, 994).

III. ANALYSIS

Here, Plaintiff Bank asserts that the parties entered into a settlement agreement pursuant tot Code of Civil Procedure section 664.6 on July 26, 2024. (Declaration of Ren; Exhibit A). The total settlement agreement was for Defendant Sayadi to pay Plaintiff $2,300.00 by December 15, 2025. Monthly payments of $100.00 was to be paid on or before February 15, 2024 with continual $100.00 monthly payments until December 15, 2025. (*Id.*). The agreement also addressed that failure to comply with the payment schedule may result in a default. (*Id.*). The written settlement agreement indicated the total amount, scope, and payment terms of the settlement. The settlement agreement was signed by all of the parties to the agreement and filed with the Court. Defendant failed to make payments starting on May 15, 2024 to the present. The last payment received was on April 5, 2024. Plaintiff seeks damages of $4,537.89 as in its Complaint with a $300.00 credit for a total outstanding principal of $4,237.89. (*Id.*). Thus, Plaintiff has met its burden.

Plaintiff's counsel filed a memorandum of costs in the amount of $293.50 compromised of a $225.00 filing and motion fees as well as a $68.50 service of process fee.

In total, the plaintiff seeks a total judgment in the amount of $4,531.39.

IV. <u>CONCLUSION</u>

Based on the foregoing, and the motion being unopposed, the Court GRANTS the motion to enter judgment in favor of Plaintiff Bank in the amount of $4,531.39 against Defendant Sayadi. The Court will prepare the Order.

Calendar Lines # 6

Case Name Nemat Maleksalehi et al vs Baudeli Plastering, Inc. et al

Case No. 24CV442712

Motion to Approve Good Faith Settlement

I. <u>BACKGROUND</u>

This breach of contract claim stems from a construction defect claim of a single family home in Saratoga. Plaintiffs Nemat and Maryam Maleksalehi filed a Complaint on July 9, 2024. Subsequently, other defendants, cross complainants, and cross-defendants were brought into the action. Cross defendant Shawn Malek and the Malek Family Real Estate, LLC were dismissed on December 1, 2025. There are also three notices seeking approval of settlement from other parties including: defendant Baudeli Plastering Inc., defendant Edessa Corporation d/b/a Naddours Ornamental Iron, and this motion. Before the Court today, is defendant TBS Design Gallery, Inc. ("TBS")'s application for determination of a good faith settlement that was filed on May 14, 2026. The motion was accompanied by a proof of service on May 14, 2026 indicating electronic service on the plaintiff's as well as non-settling parties.

The motion is unopposed. Code of Civil Procedure section 877(a)(2) requires an opposition by any non-settling parties within 25 days of mail notice or June 8, 2026 and Code of Civil Procedure section 1005(b) opposition papers were due on May 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following: Defendants TBS's notice, memorandum of points and authorities, Declaration of Nora R. Boardman in support of TBS's application for good faith settlement, and proof of service to all parties (totaling 11 pages).